

Bournemouth Corporation Act 1971

CHAPTER lxiv

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ELIZABETH II



1971 CHAPTER lxiv

An Act to confer further powers upon the mayor, aldermen and burgesses of the borough of Bournemouth in relation to lands and the health, local government, improvement and finances of the borough; and for other purposes.

[5th August 1971]

WHEREAS—

(1) The borough of Bournemouth is a county borough under the government of the mayor, aldermen and burgesses of the said borough (in this Act called “ the Corporation ”):

(2) It is expedient that further provision should be made with reference to lands and the health, local government, improvement and finances of the borough and that the powers of the Corporation in regard thereto should be enlarged and extended as in this Act provided:

(3) It is expedient that the other provisions contained in this Act be enacted:

(4) The purposes of this Act cannot be effected without the authority of Parliament:

(5) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 1933 c. 51. have been observed:

(6) A map marked “ Map of five parks ” was in the month of November, 1970, deposited in the office of the Clerk of the Parliaments, House of Lords, and in the Private Bill Office of the House of Commons and the office of the town clerk, and such map is in this Act referred to as “ the deposited map ”:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

PART I

PRELIMINARY

Short and
collective
titles.

1.—(1) This Act may be cited as the Bournemouth Corporation Act 1971.

1969 c. vi.

(2) The Bournemouth Corporation Act 1969 and this Act may be cited together as the Bournemouth Corporation Acts 1969 and 1971.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Parks.

Part IV.—Public order and public safety.

Part V.—Public health.

Part VI.—Hackney carriages, etc.

Part VII.—Superannuation.

Part VIII.—Finance.

Part IX.—Miscellaneous.

Part X.—General.

Interpretation.

3.—(1) In this Act the several words and expressions to which meanings are assigned by section 343 of the Act of 1936 have the same respective meanings, unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

1933 c. 51.

“ the Act of 1933 ” means the Local Government Act 1933;

1936 c. 49.

“ the Act of 1936 ” means the Public Health Act 1936;

1946 c. 49.

“ the Act of 1946 ” means the Acquisition of Land (Authorisation Procedure) Act 1946;

1882 c. 56.

1878 c. 76.

“ apparatus ” means any mains, pipes or other apparatus and electric lines and works (as respectively defined in the Electric Lighting Act 1882) and telegraphic lines (as defined in the Telegraph Act 1878) belonging to or maintained by a statutory undertaker and includes any structure or works for the lodging therein of apparatus;

PART I
—cont.

- “ the appointed day ” has the meaning assigned to that expression by section 70 (The appointed day) of this Act;
- “ the borough ” means the borough of Bournemouth;
- “ bulk refuse container ” means a container of not less than 1 cubic yard nominal capacity for refuse designed or adapted to be emptied by mechanical means into a refuse vehicle of the Corporation or to be removed by a vehicle of the Corporation for emptying;
- “ contravention ” includes a failure to comply and “ contravene ” shall be construed accordingly;
- “ the Corporation ” means the mayor, aldermen and burgesses of the borough;
- “ the council ” means the council of the borough;
- “ daily fine ” means a fine for each day on which an offence is continued after conviction therefor;
- “ enactment ” includes an enactment in this Act or in any general or local Act and any order, byelaw or regulation for the time being in force within the borough;
- “ magistrates’ court ” has the same meaning as in the Magistrates’ Courts Act 1952; 1952 c. 55.
- “ Minister of the Crown ” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946; 1946 c. 31.
- “ operational land ”, in relation to the Post Office, has the same meaning as in sub-paragraph (4) of paragraph 93 of Schedule 4 to the Post Office Act 1969 and means, 1969 c. 48.
in relation to statutory undertakers (other than the Post Office), land which is used for the purpose of the carrying on of their undertaking and land in which an interest is held for that purpose, not being land which, in respect of its nature and situation, is comparable rather with land in general than with land which is used, or in which interests are held, for the purpose of the carrying on of statutory undertakings;
- “ public service vehicle ” has the meaning assigned to that expression by section 117 of the Road Traffic Act 1960; 1960 c. 16.
- “ the railways board ” means the British Railways Board;
- “ statutory undertakers ” means persons authorised by any enactment to carry on any undertaking for the supply of electricity, gas or water, and includes the Post Office;
- “ the town clerk ” means the town clerk of the borough.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

LANDS

Provision of substituted sites.

4. The power of the Corporation to purchase land by agreement shall include power to purchase land by agreement for the purpose of providing substituted sites or facilities for the owners and occupiers of land that may be acquired under any enactment.

Power to reinstate owners or occupiers of property.

5.—(1) The Corporation may enter into and carry into effect an agreement or arrangement with the owner or occupier of any land acquired or to be acquired under this Act with respect to his reinstatement.

(2) Any such agreement may provide for the exchange of land; and for that purpose the Corporation may pay or receive money for equality of exchange.

Undertakings and agreements binding successive owners.

6.—(1) Every undertaking given by or to the Corporation to or by the owner of a legal estate in land, and every agreement made between the Corporation and any such owner, being an undertaking or agreement—

(a) given or made under seal either on the passing of plans or otherwise in connection with the land; and

(b) expressed to be given or made in pursuance of this section;

shall, if registered in the local land charges register, be enforceable by the Corporation against the person or persons who entered into, or joined as a party to, such undertaking or agreement and all persons deriving title by, through or under him or them.

(2) Any person against whom such an undertaking or agreement is enforceable shall be entitled to require from the Corporation a copy thereof.

Compulsory creation of easements.

7.—(1) The Corporation, by means of an order made by the Corporation and submitted to and confirmed by the appropriate Minister, may be authorised to create in favour of the Corporation in or over any land, which under any enactment the Corporation may be authorised to acquire compulsorily, any easement or other right in, over, under or in relation to such land which, in the opinion of the appropriate Minister, is essential to the full enjoyment or use of any buildings owned or occupied, or intended to be owned or occupied, by the Corporation for the purposes of any of their undertakings, powers or duties.

(2) The appropriate Minister shall not confirm any order under this section unless he determines that the easement or right can be created without material detriment to the land in, over, under or in relation to which it is proposed to be created or, in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of the house.

(3) The Act of 1946 shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of the Act of 1946 and as if—

(a) the expression “compulsory purchase of land” in the Act of 1946 included the creation of such easement or right as is mentioned in subsection (1) of this section; and

(b) paragraphs 9 and 10 of Schedule 1 to the Act of 1946 applied to the creation of such easement or right as is mentioned in the said subsection (1) whether it is created in, over or under any land to which either of those paragraphs relates or in, over or under any other land in which the person entitled to the benefit of the paragraph has an easement or other right which if it were land would be land to which the paragraph relates.

(4) No such easement or right as is mentioned in subsection (1) of this section shall be deemed part of a house, building or manufactory or of a park or garden belonging to a house within subsection (1) of section 8 of the Compulsory Purchase Act 1965. 1965 c. 56.

(5) In this section “appropriate Minister” means the Minister of the Crown having power to authorise the purchase compulsorily of the land for the enjoyment or use of which the easement or other right is required or who would have had such power if such land were not already owned by the Corporation.

8.—(1) If the Corporation—

(a) acquire land by agreement; or

(b) enter into an agreement to acquire land; or

(c) have acquired land by agreement before the passing of this Act; or

(d) appropriate (whether before or after the passing of this Act) land which has been previously acquired by agreement;

Suspension of
restrictive
covenants.

for a purpose for which they are for the time being or could under any enactment for the time being in force be authorised to acquire the land compulsorily and the land is affected by any restriction arising under covenant or otherwise (other than a restriction imposed by any enactment) as to the user thereof or the building thereon the council may, subject to the provisions of this section, by resolution suspend the operation of such restriction.

(2) The resolution shall describe by reference to a map the land to which it applies.

(3) The Corporation shall—

(a) in three successive weeks publish in one or more local newspapers circulating in the locality in which the land

PART II
—cont.

referred to in the resolution is situated a notice stating that the resolution has been passed, describing the land and naming a place within the borough where a copy of the resolution and map may be inspected and specifying the time, not being less than three months from the date of the first publication of the notice, within which and the manner in which objections to the suspension of the restriction can be made;

(b) on or before the date of the first publication of the said notice—

(i) serve a copy of that notice by registered post or the recorded delivery service on every person who appears to them, after diligent inquiry, to be entitled to the benefit of the restriction to which the resolution relates; and

(ii) affix a copy or copies of that notice to some conspicuous object or objects on the land.

(4) Any person claiming to be entitled to the benefit of the restriction may object to the suspension of the restriction by sending notice of his objection and of the grounds thereof to the appropriate Minister and a copy thereof to the Corporation within the period specified in the notice.

(5) If any objection is duly made as aforesaid and is not withdrawn the resolution shall be of no effect unless and until it is confirmed by the appropriate Minister and before confirming the resolution the appropriate Minister shall cause a public local inquiry to be held into the proposed suspension of the restriction and after considering the report of the person who held the inquiry may confirm the resolution.

(6) (a) If no objection is duly made under subsection (4) of this section or if all objections so made are withdrawn the restriction shall be suspended on and after the date of the expiration of the period specified in the notice or the date of the withdrawal of the objection or, if more than one, the last objection or the date on which the Corporation acquire or appropriate the land, whichever is the latest.

(b) If objection is duly made as aforesaid and the appropriate Minister confirms the resolution the restriction shall be suspended on and after such date as the appropriate Minister shall determine not being earlier than the date on which the Corporation acquire or appropriate the land.

(7) If in the opinion of the Corporation there is doubt whether any such land as is mentioned in subsection (1) of this section is affected by any restriction to which that subsection relates or whether any such restriction is enforceable the Corporation may—

(a) in three successive weeks publish in one or more local newspapers circulating in the locality in which the land is

situated a notice describing the land and stating generally the effect of this subsection and of subsections (8) and (9) of this section and specifying the time not being less than three months from the date of the first publication of the notice within which and the manner in which any person claiming to be entitled to enforce a restriction against the use of the land may intimate such claim to the Corporation and shall produce to them his documents of title in support of his claim;

(b) on or before the date of the first publication of the notice referred to in paragraph (a) of this subsection—

(i) serve a copy of that notice by registered post or the recorded delivery service on every person who they consider after diligent inquiry may reasonably be expected to claim to be entitled to the benefit of a restriction against the land; and

(ii) affix a copy or copies of that notice to some conspicuous object or objects on the land.

(8) If any person is entitled to the benefit of a restriction against the land but fails to comply with the requirements of such notice, the restriction shall, so far as concerns such person and his successors in title, be deemed to have been suspended under the foregoing provisions of this section, but without prejudice to any claim for compensation under subsection (9) of this section.

(9) The Corporation shall pay to any person entitled to the benefit of any restriction suspended under the powers of this section compensation equal to such sum as that person would have been entitled to receive for the discharge of such restriction under section 84 of the Law of Property Act 1925, and the amount 1925 c. 20. of such compensation shall be determined in case of dispute by the Lands Tribunal.

(10) Any restriction suspended under the powers of this section shall be unenforceable so long as the Corporation are the owners of the land affected by the restriction, and, if compensation is paid by the Corporation under subsection (9) of this section in respect of the suspension of a restriction relating to the building upon or use of land, that restriction shall remain unenforceable in respect of such building or use notwithstanding any subsequent conveyance or disposition of the land to any other person:

Provided that if such compensation is paid on the basis that the land may be used for a particular purpose, the restriction shall, after any subsequent conveyance or disposition of the land to a person otherwise than for any of the purposes of the Education Acts 1944 to 1970, remain unenforceable only so long as the land is used for that purpose.

PART II
—cont.

(11) If the Corporation dispose of any land affected by the restriction suspended under the powers of this section they shall in two successive weeks publish notice thereof in one or more local newspapers circulating in the locality in which the land is situated.

(12) Nothing in this section shall apply to—

- (a) any restriction for the protection of or for preventing interference with the use of or for securing access to operational land or apparatus of the railways board or any statutory undertakers contained in any deed, wayleave, agreement or other instrument;
- (b) any restriction for the prevention of pollution of water which any statutory water undertakers are for the time being authorised to take;
- (c) any restriction arising under a covenant granted to the National Trust for Places of Historic Interest or Natural Beauty restricting the development or use of land.

(13) In this section—

- (a) “the appropriate Minister” means the Minister of the Crown having power to authorise the compulsory purchase of the land for the purpose for which the Corporation have acquired or agreed to acquire or appropriated that land;
- (b) “land” does not include a leasehold interest in land other than land which, at the time of the making of a resolution under subsection (1) of this section in respect thereof, has been demised for a term of more than forty years of which twenty-five years shall have then expired.

Agreements
with
developers.

9.—(1) The Corporation and any person having an estate or interest in any land within the borough may enter into an agreement which may provide for all or any of the following:—

- (a) determining the manner in which that land is to be developed and the order in which development of that land shall be carried out as between the different parts of that land and as between the different parts of the development of any part of that land;
- (b) determining the time by which development of that land shall be completed or the times by which the parts of that development shall be completed;

PART II
—cont.

- (c) ensuring that the estate or interest of that person in that land shall not be conveyed, leased or assigned except by way of mortgage or legal charge to any person unless the Corporation shall have first satisfied themselves that that person has or can command sufficient financial resources to carry out development of that land and to implement all the provisions of the agreement;
- (d) the dedication to the public of rights of way over that land or over a part or parts of any building or structure which is comprised in the development and the maintenance and cleansing of the public rights of way so dedicated including the maintenance and cleansing of the surface and the lighting of the building or structure over or above the public rights of way so dedicated and the maintenance of any support of the public rights of way so dedicated;
- (e) the use by the public of any paths or ways, which are not dedicated to the public, over that land or over a part or parts of any building or structure which is comprised in the development of that land, upon such terms and conditions as may be specified in the agreement (including terms and conditions as to the maintenance and cleansing of the surface of such paths or ways and the lighting of any building or structure over or above such paths or ways and the maintenance of any support of such paths or ways);
- (f) arrangements relating to the provision, maintenance or use of facilities for the parking of vehicles for or in connection with development of that land;
- (g) any other related or consequential matters.

(2) (a) An agreement entered into under the preceding subsection may contain positive and negative covenants and whether they be positive or negative and notwithstanding that they may not enure, and may not be expressed to enure, for the benefit of any other land of the covenantee they shall, if registered in the local land charges register, be enforceable by the Corporation against the covenantor and all persons deriving title by, through or under the covenantor.

(b) In the event of the person who has entered into an agreement under the preceding subsection or any person deriving title by, through or under him failing to perform any of the positive covenants contained in the agreement the Corporation may after giving not less than six weeks' notice of their intention so to do

PART II
—cont.

enter on the land and do the work in default and the expenses incurred by the Corporation in so doing shall be recoverable by them from the person in default.

(c) Except as may be expressly provided in the agreement an agreement entered into under the preceding subsection shall be enforceable and be deemed to be intended to be enforceable in perpetuity or for the duration of the estate or interest which the person entering into the agreement has in the land at the time when the agreement is entered into.

(d) Nothing in any agreement entered into under the preceding subsection shall prejudice or affect any powers exercisable by the Central Electricity Generating Board, the Gas Council, the Southern Gas Board or the Southern Electricity Board, whether by agreement or otherwise, for the placing, inspecting, maintaining, adjusting, repairing, altering, renewing or removing of apparatus in, on, under or over any land or building to which the agreement relates, or any obligations or rights of the said Boards and Council in relation to the exercise of such powers.

(3) The Corporation may take or acquire shares or other securities in any company incorporated in the United Kingdom with which an agreement is entered into under this section.

1962 c. 38. (4) In this section “development” has the same meaning as in section 12 of the Town and Country Planning Act 1962.

PART III

PARKS

Interpretation
of Part III
of Act.

10. In this Part of this Act, unless the subject or the context otherwise require, “the five parks” means Redhill Park, Meyrick Park, Seafeld Gardens, King’s Park and Queen’s Park in the borough shown on the deposited map.

Control of
parks.
1889 c. clxi.
(52 & 53 Vict.)
1900 c. cclxxxvi.

11. Without prejudice to the provisions of the Bournemouth Park Lands Act 1889 and the Bournemouth Corporation Act 1900 the five parks and each of them are hereby declared and deemed to be parks belonging to and provided by and under the management and control of the Corporation within the meaning of the Public Health Acts 1875 to 1961, the Bournemouth Improvement Act 1892, the Local Government Act 1948, the Bournemouth Corporation Act 1960 and this Act and for the purposes of the making of byelaws for the regulation thereof, the five parks shall further each be deemed to be a public walk or pleasure ground purchased, laid out and maintained by the Corporation for the purpose of being used as such under the Public Health Act 1875.

1892 c. clxiii.
1948 c. 26.
1960 c. xliii.

1875 c. 55.

12. The Corporation may erect fences on any part of any park or pleasure ground provided by them or under their management and control for the necessary protection of the public and for any purpose for which the said park or pleasure ground or part thereof may lawfully be used provided that the public is not thereby denied reasonably convenient admission to the said park or pleasure ground or part thereof.

PART III
—cont.

Fences on
parks, etc.

13. In the exercise of the powers of this Part of this Act the Corporation shall not interfere with any apparatus and nothing in the said Part shall prejudice or affect the right of a statutory undertaker to lay, maintain, extend, repair, renew, inspect or remove any apparatus.

For protection
of certain
statutory
undertakers.

PART IV

PUBLIC ORDER AND PUBLIC SAFETY

14.—(1) Where the Corporation have under section 16 of the Act of 1957 accepted an undertaking that a house will not be used for a human habitation or where the Corporation have—

Securing of
unoccupied
houses under
Act of 1957.

(a) by a closing order made under section 17, 18, 26 or 35 of the Act of 1957, ordered any house or building, or any part thereof, to be closed; or

(b) by a clearance order under section 44 of the Act of 1957, ordered any building, or any part thereof, to be vacated, and in such a case it appears to the Corporation that the building, or the part thereof (as the case may be), will not be, or is unlikely to be, demolished within six weeks from the date when, in pursuance of the order, the premises are vacated;

they may, if the premises are not effectively secured so as to prevent the entry into the premises, when unoccupied, of any person other than a person authorised by the owner or the Corporation, after giving to the owner not less than forty-eight hours' notice of their intention to do so, themselves do such things in relation to the house or building, or part thereof, as will so secure the premises against entry.

(2) (a) When the Corporation serve any notice under the foregoing subsection they shall at the same time send a copy of such notice to the statutory undertakers.

(b) Nothing in the foregoing subsection shall prejudice the right of a statutory undertaker to enter upon any premises in the exercise of their statutory powers in that behalf:

Provided that, without prejudice to any other obligation or liability arising in respect of any entry in exercise of statutory

PART IV
—cont.

powers, a statutory undertaker in exercising such powers of entry in respect of any premises required to be secured under the foregoing subsection shall ensure that the premises are not left less secure by reason of the entry.

1961 c. 64. (3) Nothing in this section shall prejudice the powers of the Corporation to take steps to deal with any dangerous building under section 25 of the Public Health Act 1961.

(4) In this section—

1957 c. 56. “the Act of 1957” means the Housing Act 1957;

“house” has the same meaning as in the Act of 1957;

“owner” includes any person deemed to be the person having control of the house for the purposes of Part II of that Act.

Coffee bars,
clubs, etc.,
open after
11 p.m. or
before 5 a.m.

15.—(1) In this section—

“coffee bar” means—

(a) any premises which are kept open for public refreshment at any time between the hours of 11 o'clock in the evening and 5 o'clock in the morning; or

(b) any premises which are used by a club, organisation or body and which, if they were kept open to the public, would fall within paragraph (a) of this definition;

but does not include any premises—

(i) in respect of which there is in force for the time being—

1964 c. 26. (A) a justices' on-licence within the meaning of subsection (2) of section 1 of the Licensing Act 1964;

1890 c. 59.
1967 c. 19. (B) a licence granted by the licensing justices under Part IV of the Public Health Acts Amendment Act 1890 or the Private Places of Entertainment (Licensing) Act 1967;

so long as they are in use wholly or mainly and bona fide for the purpose authorised by such licence; or

(ii) which are kept open wholly or mainly as an ancillary amenity to a bona fide hotel, guest house or lodging house; or

(iii) which are used by a club registered or licensed under the Licensing Act 1964, or a club provided or maintained by the Corporation; or

PART IV
—cont.
1964 c. 26.

(iv) which are used by a club, organisation or body—

(A) registered as a charity under section 4 of the Charities Act 1960, or not required to be registered under that section by virtue of the provisions of subsection (4) thereof; or 1960 c. 58.

(B) which is of a bona fide social, political, religious or sporting character and of a non-proprietary nature; or

(v) in respect of which a licence is for the time being in force for the public performance of stage plays or a cinematograph exhibition; or

(vi) which are used as a canteen forming part of a factory or office which is subject to the Factories Act 1961 or the Offices, Shops and Railway Premises Act 1963; or 1961 c. 34.
1963 c. 41.

(vii) being a private house or private flat;

“specified drug” means any substance which the council, with the approval of the Secretary of State, by resolution determine should, from a date to be fixed by the resolution, be included among the drugs to which subsection (14) of this section applies;

“young person” means a person who has not attained the age of eighteen years.

(2) For the purposes of this section premises shall be deemed to be kept open for public refreshment at any time during which they are being used for the sale of refreshments to the public whether or not the public are allowed to be on the premises at the time of sale.

(3) For the purposes of a resolution relating to a specified drug the provisions of subsections (3) and (4) of section 70 (The appointed day) of this Act shall (with any necessary modifications) apply to any such resolution and the date fixed thereby.

(4) If in the opinion of the Corporation it becomes unnecessary that premises of any particular class or description should remain subject to the provisions of this section the council may by resolution determine that as from a date to be fixed by the

PART IV
—cont.

resolution such class or description of premises shall be exempted from the provisions of this section; and the provisions of subsections (3) and (4) of the said section 70 shall (with any necessary modifications) apply to any such resolution and the date fixed thereby:

Provided that the Corporation may, after the date so fixed by any such resolution, apply to a magistrates' court by way of complaint for an order that, having regard to any relevant circumstances, any specified premises exempted from the provisions of this section by such a resolution should become subject to the provisions of this section, and if the court so orders those premises shall become subject to the provisions of this section from such date as may be fixed by the court, being a date not earlier than one month from the date of service upon the occupier of those premises of a copy of the order of the court.

(5) On and after the appointed day—

- (a) no premises in the borough shall be used as a coffee bar, unless they are registered with the Corporation in accordance with the provisions of this section;
- (b) if any owner, occupier or other person concerned in the management of premises in the borough uses them as a coffee bar or permits the premises to be used as a coffee bar he shall, unless the premises have been so registered with the Corporation and the registration remains in force, be liable to a fine not exceeding one hundred pounds.

(6) The Corporation may refuse to register or renew the registration of any premises for use as a coffee bar if they are satisfied that—

- (a) the premises are not suitable for use as a coffee bar having regard to the likelihood of nuisance being caused by reason of the situation of the premises and the character of adjacent properties;
- (b) the persons intended to be concerned with the conduct of the premises as a coffee bar are such that young persons resorting thereto are likely to be depraved or corrupted;
- (c) the premises are not safe for use as a coffee bar;
- (d) the premises are not provided with satisfactory means of lighting, sanitation and ventilation;
- (e) adequate precautions against fire on the premises have not been taken;
- (f) satisfactory means of escape in case of fire and suitable fire-fighting appliances are not provided on the premises;
or

- (g) the applicant has, within the period of five years immediately preceding the date of the application to the Corporation, been convicted of an offence under subsections (7) or (14) of this section.

(7) (a) The Corporation may on registering or renewing the registration of any premises for use as a coffee bar impose conditions as to—

- (i) the maintenance of good order and safety;
- (ii) the number of persons who may be allowed to be on the premises at any time;
- (iii) the taking of proper precautions against fire, and the maintenance in proper order of means of escape in case of fire, fire-fighting appliances and means of lighting and ventilating the premises;
- (iv) the maintenance in safe condition of means of heating the premises; and
- (v) the hours of opening and closing the premises for use as a coffee bar so as to ensure that nuisance is not likely to be caused to residents in the neighbourhood:

Provided that the Corporation shall not impose any condition under sub-paragraph (v) of this paragraph in the case of premises which are kept open wholly or mainly as an ancillary amenity to a bona fide tenpin bowling establishment.

(b) Any person concerned in the management of a coffee bar who contravenes any condition imposed under this subsection in respect of the coffee bar, or who knew or had reasonable cause to suspect that such a condition was being contravened by some other person, shall be liable to a fine not exceeding fifty pounds:

Provided that if the person against whom proceedings are brought under this paragraph proves that he has used all due diligence to secure that the condition concerned was complied with, he shall be acquitted of the offence under this paragraph.

(8) The Corporation may at any time cancel the registration of any premises on any ground upon which, pursuant to subsection (6) of this section, they may refuse to renew the registration of those premises, or if they are satisfied that any condition imposed under subsection (7) of this section has not been complied with.

(9) An application for registration or renewal of registration under this section shall be made in writing to the Corporation by the owner or occupier of the premises to which the application relates and every such application shall state—

- (a) the address or situation of the premises to which the application relates;

PART IV
—cont.

- (b) the name and address of the applicant and his trade or calling during the six months preceding the application;
- (c) such other information regarding the premises to be registered and the manner in which the premises are proposed to be used as the Corporation may reasonably require.

(10) Any person making application for registration or renewal of registration under this section shall when making application pay to the Corporation in respect thereof a fee of one pound.

(11) Before refusing to register or renew the registration of any premises or cancelling the registration of any premises the Corporation shall give to the person applying for registration or renewal of registration or in whose name the premises are registered an opportunity of appearing before and of being heard by a committee of the council and, if so required by him, the Corporation shall within seven days from the date of their decision give to him a statement of the grounds upon which it was based.

(12) Any person aggrieved by the refusal of the Corporation to register or renew the registration of any premises under this section, or by the cancellation of any such registration or by any condition imposed under this section, may within twenty-one days from the date of the service of the notice of such refusal or cancellation, or the imposition of the condition, appeal to a magistrates' court; and on any such appeal the court may by order confirm or set aside such refusal or cancellation or confirm, vary or set aside any such condition, or impose any condition which the Corporation would have been entitled to impose by virtue of this section, and the Corporation shall give effect to such order accordingly.

(13) Registration under this section shall, unless cancelled, remain in force for such period not exceeding thirteen months as may be fixed by the Corporation.

1964 c. 64.
1965 c. 15.

(14) If a coffee bar is conducted in a disorderly manner, or if any drug to which the Drugs (Prevention of Misuse) Act 1964 or the Dangerous Drugs Act 1965 applies, or any specified drug is sold, supplied or otherwise distributed on the premises by a person to any other person resorting thereto, any person concerned in the management of the coffee bar who knew or had reasonable cause to suspect that the premises were so conducted as aforesaid or that such sale, supply or distribution was taking place on the premises shall be guilty of an offence under this section and liable on conviction to a fine not exceeding fifty pounds:

Provided that nothing in this subsection shall apply to the administration of a drug or a specified drug for the purposes of medical treatment by or in accordance with the directions of a medical practitioner registered pursuant to the Medical Act 1956, 1956 c. 76. or any enactment amending or replacing the same.

PART IV
—cont.

(15) Any duly authorised officer of the Corporation on producing if so required some duly authenticated document showing his authority, and any police constable, shall have a right to enter, at all reasonable times, any premises used as a coffee bar, or intended to be so used, for the purpose of ascertaining—

- (a) whether there is, or has been in or in connection with the premises, any contravention of the provisions of this section or of any condition imposed under the powers of this section;
- (b) whether or not circumstances exist which would authorise the Corporation to take any action under this section.

(16) The provisions of subsections (2), (3) and (4) of section 287 of the Act of 1936 shall apply to entry into any premises for the purposes of subsection (15) of this section as they apply to entry into premises for the purposes of subsection (1) of that section.

(17) Notwithstanding the reference in subsection (1) of this section to the hours of 11 o'clock in the evening and 5 o'clock in the morning where premises are for the time being registered with the Corporation under this section the person who keeps the premises shall be deemed to have been duly licensed in respect of those premises under the provisions of the Late Night Refreshment Houses Act 1969 in respect of the period between the hours of 10 o'clock in the evening and 5 o'clock in the morning and the provisions of that Act, and of any enactment amending or extending the same, shall apply accordingly.

16.—(1) No procession shall pass through the streets of the borough unless written notice stating the route by which, and the date and time on and at which, it will pass has been delivered at the office of the town clerk, and at the principal police station in the borough, by midday on the day next but three before the date stated, treating as not an intervening day a Sunday, Christmas Day, Good Friday, bank holiday or day appointed for public thanksgiving or mourning.

(2) If a procession passes through the streets of the borough in contravention of the foregoing subsection, or by a route, or at a time, other than that stated in the notice delivered with respect thereto under that subsection, any person organising or conducting the procession shall be liable to a fine not exceeding twenty pounds.

PART IV
—cont.

(3) In this section “ procession ” means any public or ceremonial procession or any circus procession or procession of wild animals: Provided that nothing in this section shall apply to a public or ceremonial procession habitually held.

touting,
hawking, etc.

17.—(1) As from the appointed day no person shall at any place in the borough to which this section applies—

- (a) importune any person by touting for a hotel, lodging house or refreshment house, for a shop, for a theatre, garden, pier or place of amusement or for a boat, hackney carriage or public service vehicle; or
- (b) hawk, sell or offer for sale any article or commodity; or
- (c) take a photograph by way of trade or business of any person except as mentioned in subsection (3) of this section.

(2) The prohibition imposed by paragraph (b) of subsection (1) of this section shall not apply to—

- (a) the sale or offering for sale by any person of newspapers and periodicals; or
- (b) a sale or offering for sale to persons residing in, or employed or carrying on business at, premises in or adjoining a place to which this section applies; or
- (c) the sale or offering for sale of ice-cream or other similar commodities by any person in any place to which this section applies by virtue of paragraph (d) of subsection (4) of this section.

(3) The prohibition imposed by paragraph (c) of subsection (1) of this section shall not apply to the taking of a photograph for the purpose of making it available for publication in a newspaper or periodical if the photographer is employed as such by or on behalf of the owner or publisher of a newspaper or periodical, or carries on a business which consists in, or includes, selling or supplying photographs for such publication.

(4) This section applies to any place—

- (a) in the Bournemouth and Boscombe Pier Approaches, Undercliff Drive and in or on an esplanade, pier or promenade;
- (b) in a park, pleasure ground or open space within the meaning of the Open Spaces Act 1906 which is provided by the Corporation or under their management and control;
- (c) on the seashore;
- (d) in any street or part of a street to which this section applies by virtue of byelaws made by the Corporation under this section.

(5) If any person contravenes any of the foregoing provisions of this section he shall be liable to a fine not exceeding twenty pounds.

PART IV
—cont.

(6) The provisions of this section shall not prevent any land-owner, or any person with his consent, or the Corporation, or any person with the consent of the Corporation, exercising any rights which they could have exercised if this section had not been enacted.

(7) Nothing in this section shall apply to any land in the borough leased to the mayor, aldermen and burgesses of the borough of Christchurch under a lease dated 9th October, 1931, during the continuance of that lease.

(8) Section 35 (Touting, hawking, etc.) of the Bournemouth Corporation Act 1960 is hereby repealed.

1960 c. xliii.

18. Section 231 of the Act of 1936 shall have effect in its application to the borough as if in subsection (1) after paragraph (f) there were added the following paragraph:—

Regulation of
bathing and
surfing.

“(g) regulate for preventing danger to bathers the areas in which and the hours during which surfing by means of surf boards measuring more than 5 feet in length and by means of circular surf boards shall be permitted and bathing shall not be permitted”.

19.—(1) As from the appointed day, no person shall light a fire on any premises where it is proposed to carry out demolitions for the purpose of—

Fires on
demolition
sites.

(a) demolishing a building or part thereof; or

(b) burning material in the course of such demolition;

without giving the Corporation not less than seven days' notice of his intention to do so:

Provided that it shall be a sufficient compliance with this section to give notice of intention to light such a fire immediately in a case where by reason of the discovery of dry rot or vermin or for similar good cause it would be dangerous to delay.

(2) On receipt of a notice in pursuance of subsection (1) of this section the Corporation may issue conditions subject to which such a fire may be lit.

(3) Any person aggrieved by a condition imposed by the Corporation under this section may appeal to a magistrates' court.

(4) Any person who contravenes subsection (1) of this section or a condition imposed under subsection (2) of this section shall be guilty of an offence and liable to a fine not exceeding fifty pounds.

PART IV
—cont.

(5) Nothing in this section shall affect the operation of regulation 40 of the Construction (General Provisions) Regulations 1961.

PART V
PUBLIC HEALTH

Refuse
disposal.

20.—(1) Where plans of a building have been deposited with the Corporation in pursuance of building regulations the Corporation may reject the plans if they are not satisfied that they show that—

- (a) the method of storage of refuse together with the related facilities to be provided are adequate; and
- (b) adequate means of access from a highway to the place of storage of the refuse so as to facilitate the removal of refuse to the Corporation's refuse vehicles will be provided.

(2) If the Corporation reject the plans under the authority of this section the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been so rejected.

(3) Any question arising under this section between the Corporation and the person by or on whose behalf plans are deposited as to whether the accommodation for the storage of refuse or the means of access shown on the plans is adequate may on the application of that person be determined by a magistrates' court:

Provided that no such application shall be entertained unless it is made before the proposed building has been substantially commenced.

Provision of
bulk refuse
containers by
Corporation.

21. The Corporation may at the request of the owner or occupier of any premises within the borough provide and maintain at such premises a bulk refuse container on such terms and conditions and at such monthly, quarterly or annual charge as may be agreed between such owner or occupier and the Corporation.

Maintenance
of and access
to bulk refuse
containers.

22.—(1) Where the owner or occupier of any premises within the borough provides a bulk refuse container, or where the Corporation at the request of the owner or occupier provide a bulk refuse container, the Corporation may by notice require him to provide and maintain to the satisfaction of the Corporation a good and sufficient stand or base for the bulk refuse container, and to provide and maintain to the satisfaction of the Corporation

PART V
—cont.

such means of access from a highway to the bulk refuse container as are sufficient to allow the passage and to bear the weight, with a full bulk refuse container, of any trolley or other vehicle of the Corporation constructed to convey bulk refuse containers to and from refuse vehicles.

(2) A notice under the preceding subsection may require the owner or occupier of the premises to execute such work and to make such provision in regard to the matters aforesaid as may be necessary.

(3) The provisions of section 290 of the Act of 1936 shall apply to notices given under this section as they apply to the notices mentioned in subsection (1) of that section and, in their application to notices given under this section, shall have effect as if the following paragraph were added to subsection (3) thereof:—

“(g) where the notice requires the owner or occupier of part of the premises in question to execute works for the benefit of the owner or occupier of any other part of the premises, that the owner or occupier of that other part should bear, or contribute towards, the expenses of executing the works required”;

and subsection (5) of the said section 290 shall have effect accordingly as if after the reference to “paragraph (f)” there were inserted the words “or paragraph (g)”.

23. The Corporation may, as respects any premises in the Power to borough, provide and maintain such number of dustbins or other provide receptacles for the reception of trade refuse as they may consider dustbins for necessary. trade refuse.

PART VI

HACKNEY CARRIAGES, ETC.

24. In this Part of this Act, unless otherwise expressly enacted Interpretation or unless the subject or context otherwise requires— of Part VI of Act.

“the Act of 1847” means the Town Police Clauses Act 1847;

1847 c. 89.

“hackney carriage” has the same meaning as in the Act of 1847 save that it shall not include a public service vehicle;

“the prescribed distance” has the same meaning as in the Act of 1847;

“private hire vehicle” means a motor vehicle (within the meaning of the Road Traffic Act 1960) not being a vehicle 1960 c. 16. licensed under the provisions of the Act of 1847, with

PART VI
—cont.

respect to hackney carriages, which is kept for the purpose of being let out for hire with a driver for the carrying of passengers in such circumstances that it does not require to be licensed under the said provisions, but does not include—

(a) a vehicle which is kept and used ordinarily for the purpose of being let out for hire by the day or for longer periods of hire;

(b) a vehicle belonging to or used by the railways board for the purpose of carrying passengers or their luggage to or from any of their railway stations, railway or dock premises;

(c) a vehicle kept by any person in connection with any business carried on by him as a funeral director or undertaker and used wholly or mainly in connection with that business; or

(d) a public service vehicle.

Provisions
as to motor
vehicles let
for hire.

25. The Corporation may make byelaws for applying, with such consequential modifications as may be provided for in the byelaws, any of the provisions of—

(a) sections 37 to 67 of the Act of 1847, as subsequently amended, as they apply with respect to hackney carriages and their proprietors and drivers; and

(b) any byelaws made by the Corporation and in force with respect to such carriages, proprietors and drivers;

to private hire vehicles and their proprietors and drivers.

Fixing of
fares for
hackney
carriages.

26.—(1) The Corporation may fix the rates or fares, as well for time as distance, to be paid in respect of the hire of hackney carriages plying for hire within the prescribed distance by means of a table (hereinafter in this section referred to as a “table of fares”) made or varied in accordance with the provisions of this section.

(2) (a) Where the Corporation make or vary a table of fares they shall publish in at least one newspaper circulating in the borough a notice setting out the table of fares or the variation thereof and specifying the period, which shall not be less than twenty-eight days from the date of the first publication of the notice, within which and the manner in which objections to the table of fares or variation can be made.

(b) A copy of the notice referred to in paragraph (a) of this subsection shall for the period of twenty-eight days from the date of the first publication thereof be deposited in the offices of the town clerk and at all reasonable hours be open to public inspection without payment.

(3) If no objection to a table of fares or variation is duly made within the period specified in the notice referred to in subsection (2) of this section, or if all objections so made are withdrawn, the table of fares or variation shall come into operation on the date of the expiration of the period specified in the notice or the date of the withdrawal of the objection or, if more than one, of the last objection, whichever is the later.

(4) If objection is duly made as aforesaid and is not withdrawn, the table of fares or variation shall be of no effect unless and until it is confirmed by the Secretary of State, and before confirming a table of fares or variation the Secretary of State may, if he thinks fit, cause a local inquiry to be held into the same and, after considering the report of the person who held the inquiry, may confirm the table of fares or variation with or without modification.

(5) A table of fares made or varied under this section shall have effect for the purposes of the Act of 1847 as if included in byelaws made by the Corporation under section 68 of that Act.

(6) On the coming into operation of a table of fares made under this section, any byelaws made by the Corporation for fixing the rates and fares under section 68 of the Act of 1847, or any table of fares previously made under this section, shall cease to have effect.

(7) Section 252 of the Act of 1933 shall extend and apply to a table of fares made or varied under this section as it applies to byelaws made by the Corporation.

27.—(1) For the purposes of their functions under the Act of 1847, the Corporation may from time to time appoint stands for hackney carriages for the whole or any part of a day in any street in the borough and, with the consent of the owner, on any land not forming part of a street.

(2) Before appointing any stand for hackney carriages in exercise of the powers of this section, the Corporation shall give public notice of the proposal by advertisement in a local newspaper circulating in the borough and shall take into consideration any objections or representations in respect of such proposal which may be made to them in writing within twenty-eight days of the first publication of such notice.

(3) Nothing in this section shall empower the Corporation to appoint any such stand—

(a) so as unreasonably to prevent access to any premises, or in any station, of the railways board except with their consent; or

PART VI
—cont.

- (b) so as unreasonably to prevent access to any station or depot of any passenger road transport operators except with their consent.

(4) Any byelaws made by the Corporation before the passing of this Act for fixing stands of hackney carriages under section 68 of the Act of 1847 shall cease to have effect, but any stands fixed by such byelaws shall be deemed to have been appointed under this section.

Misleading
signs on
motor vehicles.

28.—(1) As from the appointed day there shall not be displayed on any private hire-car in the borough any sign or notice—

- (a) which consists of or includes the words “taxi”, “tax” or “cab”, whether in the singular or plural and whether alone or as part of another word; or
- (b) which consists of the words “for hire”, or the form or wording of which is in any other way such as to suggest that the vehicle on which it is displayed is presently available to take up any passenger wishing to hire it, or would be so available if not already hired.

(2) As from the appointed day no advertisement—

- (a) indicating that motor vehicles can be hired on application to a specified address or telephone number being the address or telephone number of premises in the borough; or
- (b) on or near any such premises indicating that motor vehicles can be hired at those premises;

shall include the words “taxi”, “tax” or “cab”, whether in the singular or plural and whether alone or as part of another word, unless the vehicles offered for hire are licensed cabs or the advertisement makes it clear that they are not.

(3) As from the appointed day any person who knowingly—

- (a) drives a vehicle in respect of which subsection (1) of this section is contravened or causes or permits that subsection to be contravened in respect of any vehicle; or
- (b) subject to subsection (4) of this section, issues, or causes to be issued, an advertisement which contravenes subsection (2) of this section;

shall be guilty of an offence and liable on summary conviction, in the case of a first offence under the paragraph of this subsection

in question, to a fine not exceeding twenty pounds and, in the case of a second or subsequent offence under that paragraph, to a fine not exceeding fifty pounds.

PART VI
—cont.

(4) When a person is charged with an offence under paragraph (b) of subsection (3) of this section, it shall be a defence to prove that he is a person whose business it is to publish or arrange for the publication of advertisements and that he received the advertisement in question for publication in the ordinary course of business and did not know and had no reason to suspect that its publication would amount to an offence under that paragraph.

(5) In this section—

“advertisement” includes every form of advertising, whether in a publication or by the display of notices or by means of circulars or other documents or by an exhibition of photographs or a cinematograph film, or by way of sound broadcasting or television, and references to the issue of an advertisement shall be construed accordingly;

“private hire-car” means a motor vehicle, other than a licensed cab or public service vehicle, which is used for the purpose of carrying passengers for hire or reward;

“licensed cab” means a vehicle licensed under section 37 of the Act of 1847.

29.—(1) If a hackney carriage or a private hire vehicle licensed by the Corporation under the Act of 1847 is transferred to a person other than the proprietor or part proprietor whose name is specified in the licence for the hackney carriage or vehicle, the proprietor or part proprietor shall before or within seven days after such transfer give notice thereof in writing to the Corporation specifying the name and address of the person to whom the hackney carriage or vehicle will be or has been transferred and the licence shall be deemed to be revoked if the Corporation disapprove the transfer or proposed transfer of the licence to that person and the hackney carriage or vehicle is or has been transferred to him: Transfer of
hackney
carriages,
etc.

Provided that the Corporation shall not disapprove the transfer or proposed transfer of a licence to a person except upon the ground that he is not a fit and proper person to hold such a licence.

(2) Any person aggrieved by a disapproval of the Corporation under this section may appeal to a court of quarter sessions.

PART VI
—cont.

(3) If a proprietor or part proprietor fails to give notice to the Corporation as provided by subsection (1) of this section he shall be liable to a fine not exceeding twenty pounds.

Recovery of
costs of
inspections.

30. The cost not exceeding two pounds for inspection incurred by the Corporation in carrying out inspections of vehicles for the purpose of determining whether licences should be granted therefor under the Act of 1847 shall, if the council so resolve, be recoverable from the proprietors thereof.

Fee for
driver's
licence.

31. In its application to the borough, section 46 of the Act of 1847 shall have effect as if for the words "one shilling" there were substituted the words "one pound for the first licence and twenty-five pence for any succeeding licence".

Suspension
and
revocation of
proprietor's
licence.

32.—(1) Notwithstanding anything in the Act of 1847, the Corporation may suspend or revoke the licence of a proprietor of a hackney carriage or a private hire vehicle—

(a) on the ground of the unfitness of the hackney carriage or vehicle; or

(b) for any other reasonable cause;

and where the Corporation suspend or revoke such a licence under this subsection they shall give to any such proprietor notice of the grounds on which the licence has been suspended or revoked:

Provided that nothing in this section shall empower the Corporation to revoke the licence of a proprietor of a hackney carriage or private hire vehicle on the ground of the bankruptcy of the proprietor.

(2) Any such proprietor aggrieved by a decision of the Corporation under this section may appeal to a court of quarter sessions.

Suspension
and
revocation of
driver's
licence.

33.—(1) Notwithstanding anything in the Act of 1847, the Corporation may suspend or revoke the licence of a driver of a hackney carriage or a private hire vehicle—

(a) on the ground that he has since the granting of the licence been convicted of an offence involving dishonesty, indecency or violence; or

(b) for any other reasonable cause;

and where the Corporation suspend or revoke such a licence under this subsection they shall give to any such driver notice of the grounds on which the licence has been suspended or revoked.

(2) Any such driver aggrieved by a decision of the Corporation under this section may appeal to a court of quarter sessions.

PART VI
—cont.

34. Any person acting on behalf of the Corporation and authorised in writing by the town clerk shall have power at all reasonable times to inspect any hackney carriage in the borough and any private hire vehicle in the borough which is for the time being licensed by the Corporation under the Act of 1847 for the purpose of ascertaining its fitness, and if he is not satisfied as to the fitness of the hackney carriage or vehicle or as to the accuracy of its taximeter he may by notice in writing require the proprietor of the hackney carriage or vehicle to make it or its taximeter available for further inspection at such reasonable time and place as may be specified in the notice and suspend the licence of the proprietor until such time as such authorised person is so satisfied or until the expiration of a period of two weeks, whichever shall first occur.

Fitness of
hackney
carriages,
etc.

35.—(1) Notwithstanding anything in the Act of 1847 the Corporation shall not grant a licence to act as a driver of a hackney carriage or a private hire vehicle—

Qualifications
for drivers of
hackney
carriages, etc.

(a) to any person under such age as the council may by resolution from time to time determine not being less than the age of twenty-one years;

(b) to any person who has not for at least twelve months been the holder of a licence granted under Part II of the Road Traffic Act 1960 (not being a provisional licence) authorising him to drive a motor car.

1960 c. 16.

(2) Notice of any resolution passed by the council under paragraph (a) of subsection (1) of this section shall be published by the Corporation in at least one local newspaper circulating in the borough.

(3) Nothing in paragraph (a) of subsection (1) of this section shall prevent the Corporation from granting a licence to act as a driver of a hackney carriage or private hire vehicle to any person who at the date of the passing of a resolution under the said paragraph was the holder of such a licence.

36.—(1) The Corporation may require any applicant for a licence to drive a hackney carriage or a private hire vehicle to submit to them such information as to the physical fitness of the applicant and as to the character of the applicant as they may consider necessary to enable them to determine whether to grant such licence.

Power to
require
applicants to
submit
information

(2) If a person knowingly or recklessly makes a false statement in giving information under this section he shall be liable to a fine not exceeding fifty pounds.

PART VI
—cont.

Penalty on
persons
refusing to
pay fare.

37. Any person who, within the prescribed distance, on completion of the hire of a hackney carriage licensed by the Corporation under the Act of 1847, refuses to pay the fare lawfully due from him in respect of the hiring shall be liable to a fine not exceeding twenty pounds.

Extension of
section 68 of
Act of 1847.

38. The powers of the Corporation under section 68 of the Act of 1847 shall extend so as to enable them to make byelaws for regulating the conduct of passengers in hackney carriages and private hire vehicles.

Period of
licences.

39. Notwithstanding anything in section 43 of the Act of 1847, any licence granted by the Corporation in respect of a hackney carriage or a private hire vehicle shall, if the Corporation think fit, remain in force for such period not exceeding three years from the date of the licence as they may determine:

Provided that nothing in this section shall affect the powers of the Corporation to suspend or revoke such a licence.

PART VII

SUPERANNUATION

Interpretation
of Part VII of
Act.

1937 c. 68.

40.—(1) In this Part of this Act, except as otherwise expressly provided or unless the context otherwise requires, words and expressions to which meanings are assigned by the Local Government Superannuation Act 1937 have the same respective meanings, and—

“the Act of 1937” means the Local Government Superannuation Act 1937;

“contributor” means a contributor to the fund as respects whom the Corporation are the employing authority;

“death grant” and “transfer value” have, in relation to a contributor, the meanings assigned to them respectively by the Regulations of 1954;

“the fund” means the superannuation fund maintained by the Corporation under Part I of the Act of 1937;

“the principal Acts” means the Local Government Superannuation Acts 1937 to 1953;

“the Regulations of 1954” means the Local Government Superannuation (Benefits) Regulations 1954;

“return of contributions” in relation to a person who has ceased to be a contributor includes any sum paid to, or in respect of, him by way of interest on the amount of the contributions returned to him;

“superannuation benefit” includes any benefit which is or may be granted in pursuance of the principal Acts or the regulations made thereunder or in pursuance of any local Act or scheme or local Act scheme.

(2) Without prejudice to the provisions of section 43 (Power to require designated sums to be paid to trustees) and section 44 (Transfers of employment) of this Act, the provisions of the principal Acts and the regulations made thereunder shall apply and have effect in relation to a person who is a contributor on or after the date of the coming into force of this Part of this Act subject to the extensions, modifications and applications of the said Acts and regulations contained in this Part of this Act.

41. This Part of this Act shall come into force on 1st September, 1971.

Commence-
ment of
Part VII of
Act.

42.—(1) Where, after the coming into force of this Part of this Act, the employment of a contributor who has attained the age of fifty-five years and completed ten years' service is terminated by the Corporation in the interests of efficiency before he has attained the age of sixty-five years, the contributor shall be entitled to superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment:

Benefits in
certain cases
of premature
retirement.

Provided that this subsection shall not apply to a contributor if, not later than one month after ceasing to hold his employment, he notifies the Corporation in writing that he does not wish this subsection to apply to him.

(2) Where, after the coming into force of this Part of this Act, a contributor who has attained the age of fifty-five years and completed twenty-five years' service but has not attained pensionable age terminates his employment at his own request, then superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment shall be payable in lieu of any entitlement to a return of contributions under section 10 of the Act of 1937:

Provided that—

- (i) where a person has become entitled to a superannuation benefit by virtue of this subsection, he may, by notice given to the Corporation in writing at any time before any payment on account of such benefit has been made to him, elect that this subsection, and any rights to which he is entitled thereunder, shall cease to apply in relation to him as from the date on which such notice is given;

PART VII
—cont.

- (ii) unless the Corporation otherwise determine on compassionate grounds, no benefit shall be paid to a person by virtue of this subsection before the date on which he attains pensionable age.

(3) Where a person who has become entitled to a superannuation benefit by virtue of subsection (2) of this section dies before any payment on account of such benefit has been made to him, the like benefits shall, as from the date of his death, be payable in respect of him as would have been paid if he had died on the last day of his employment as a contributor.

(4) For the avoidance of doubt it is hereby declared that, where a person is for the time being entitled to any benefit by virtue of subsection (2) of this section, that benefit shall be deemed to be a superannuation benefit for the purpose of the definition of “service” in subsection (1) of section 40 of the Act of 1937, whether or not any payment has been made to him on account thereof.

1953 c. 25.

(5) For the purposes of section 16 of the Local Government Superannuation Act 1953, and of any rules made thereunder, a person entitled to a superannuation benefit by virtue of subsection (2) of this section shall be deemed to cease to hold his employment on the day immediately preceding the day on which that benefit first becomes payable to him, and a superannuation benefit as aforesaid shall be deemed to be such a superannuation allowance or benefit as is referred to in subsection (1) of the said section 16.

(6) In this section “pensionable age” in relation to any person means the earliest age at which, if he were to remain a contributor without a break of service, he would, on ceasing to hold his employment, become entitled to superannuation benefits by reason of having, otherwise than under this section, attained such age and completed such period of service as is prescribed in the principal Acts or the Regulations of 1954, as the case may be.

Power to
require
designated
sums to be
paid to
trustees.

43.—(1) A contributor may at any time, by notice in writing to the Corporation given in such form as the Corporation may approve, direct—

- (a) that the provisions of this section shall apply to the amount (if any) which would, but for the giving of such notice, be payable to his estate either by way of death grant or as a sum calculated by reference to the aggregate amount of his contributions to the fund, with compound interest thereon; and

(b) that any such amount (hereafter in this section and in Schedule 1 to this Act referred to as “the designated sum”), instead of being paid to his estate, shall be paid to such responsible persons, not being less than two nor more than four in number, as shall be appointed for that purpose by the Corporation (hereafter in this section and in the said Schedule 1 referred to as “the trustees”) to be held upon the trusts, and with and subject to the powers and provisions, in force under the said Schedule 1 at the date of such direction.

(2) Any direction given in accordance with this section shall be effective, and the designated sum shall accordingly be paid to the trustees and shall be held by them upon the trusts, and with and subject to the powers and provisions, in force under the said Schedule 1 at the date of such direction.

(3) The trusts, powers and provisions set out in the said Schedule 1 may from time to time be varied by resolution of the council, but so that the trusts, powers and provisions as so varied shall only apply in relation to directions received by the Corporation after the making of such variations.

(4) Any direction given by a contributor under this section shall be irrevocable and binding on such contributor and his estate and all persons interested therein.

(5) In this section and in the said Schedule 1, “contributor” includes any person who, on or after the date of the coming into force of this Part of this Act, is a contributor to the fund, and “former contributor” shall be construed accordingly.

44.—(1) The Corporation may, in accordance with the provisions of a scheme made by them for the purposes of this section— Transfers of employment.

(a) as respects any contributor who ceases or has ceased to hold employment with the Corporation in order to enter an employment (in this paragraph referred to as “the new employment”) in relation to which interchange arrangements are not for the time being in force, if that contributor so desires, in lieu of making any such payment to him from the fund as is referred to in section 10 of the Act of 1937 (or, where such a payment has been made, if it is repaid to the fund by the contributor), either—

(i) make from the fund in respect of him a payment by way of a transfer value to the body or persons responsible for administering any superannuation scheme in connection with the new employment; or

PART VII
—*cont.*

(ii) subject to such consequential provisions as may be prescribed in the scheme, award to or in respect of him superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment with the Corporation:

Provided that no benefit shall be paid to a person by virtue of this sub-paragraph before such date as may be prescribed under the scheme; and

(b) as respects any person who enters or has entered into employment with the Corporation from an employment in relation to which interchange arrangements are not for the time being in force, receive any payment made by or in respect of him to the fund, whether by way of transfer value or otherwise, and shall confer on him by virtue of such payment such rights under the principal Acts, and the regulations made thereunder, as may be prescribed under the said scheme.

(2) A scheme made under this section shall be of no effect unless it has been approved by the Secretary of State, and he may approve any such scheme, either with or without modifications, after consultation with such organisations as are, in his opinion, representative of the interests concerned.

(3) A scheme made under this section may be amended or revoked by a subsequent scheme.

(4) Any body or persons responsible for administering a superannuation scheme in connection with an employment as respects which interchange arrangements are not for the time being in force may make any amendments or modifications of that superannuation scheme which may be desirable to facilitate the operation of any scheme made by the Corporation under this section.

(5) Where any provision of the principal Acts or the regulations made thereunder which has effect in relation to a contributor contains a reference to a transfer value, such reference shall be deemed (as may be appropriate) to include a reference to any such payment by way of a transfer value as is referred to in subparagraph (i) of paragraph (a) of subsection (1) of this section or to such payment by way of a transfer value or otherwise as is referred to in paragraph (b) of subsection (1) of this section.

(6) In this section “interchange arrangements” means any arrangements, whether by virtue of rules made under section 2 of the Superannuation (Miscellaneous Provisions) Act 1948 or by virtue of any other enactment apart from this section, providing for the preservation of superannuation rights following a change of employment.

45.—(1) The Corporation may, at the request in writing of any other employing authority, being the employing authority of any person who participates in the benefits of the fund, determine that, subject to the provisions of this section and to such terms and conditions and from such date as may be agreed between the Corporation and the employing authority, all or any of the provisions of the last three foregoing sections of this Act, and of any scheme made under section 44 (Transfers of employment) of this Act, shall extend and apply in relation to that person.

PART VII
—cont.

Extension of
foregoing
sections.

(2) An employing authority may make any such request to, and enter into and carry into effect any such agreement with, the Corporation as is mentioned in subsection (1) of this section notwithstanding anything contained in any enactment; and, where under any enactment or any agreement made under an enactment provision is made for expenditure to be reimbursed by an employing authority to the fund, such provision shall extend and apply in a like manner to any expenditure incurred under any of the said foregoing sections or the said scheme in pursuance of the provisions of this section.

(3) In this section any reference to a person shall be deemed to include a reference to any class or description of persons.

46. If a contributor is dismissed or resigns or otherwise ceases to hold employment in consequence of an offence of a fraudulent character or grave misconduct the Corporation may transfer from the fund maintained by them to the general rate fund an amount not exceeding the whole or any part of any contributions not returned to him or paid to his wife or family under subsection (4) of section 10 of the Act of 1937, or the amount of loss suffered by the Corporation in consequence of the contributor's offence or misconduct, whichever is the less.

Transfer of
certain sums
from fund.

47.—(1) The salary, wages, fees and other payments paid or made to an employee of the Corporation or of any other local authority in respect of any part-time employment by the Corporation (additional to his ordinary whole-time employment)—

Certain
remuneration
and service
excluded for
super-

- (a) as an instructor or other employee performing duties at or for the purposes of an evening institute or for evening classes; or
- (b) as a warden of or other employee performing duties at a youth centre; or
- (c) in any other capacity for the performance of duties which are not duties which he may be called upon to perform in his ordinary whole-time employment where employment is by the Corporation;

annuation
purposes.

PART VII
—cont.

shall not be remuneration within the meaning of the Local Government Superannuation Acts 1937 to 1953, or of any other enactment affecting the superannuation fund maintained by the Corporation under those Acts and the service of any such employee in any such part-time employment shall not be reckoned as service for any of the purposes of those Acts:

Provided that this subsection shall not apply to an employee of the Corporation who is required by his contract of service in addition to holding a whole-time employment with the Corporation to hold a part-time appointment or to undertake additional duties in respect of which separate remuneration is payable.

(2) Where before the passing of this Act any person has paid any contribution or contributions to the superannuation fund maintained by the Corporation which would not have been so paid if this section had been in force when such contribution or contributions were paid, the Corporation may repay to such person a sum equal to the amount of such contribution or contributions together with the compound interest thereon calculated to the date of repayment at the rate of three pounds per cent. per annum with half-yearly rests.

Extension of
powers of
council to
grant
gratuities to
widows and
dependants
of former
employees.
1953 c. 25.

48.—(1) Section 18 of the Local Government Superannuation Act 1953 in its application to the borough shall have effect as if—

- (i) for the expression “to the widow or any other dependant” in subsections (1) and (2) there were substituted the words “to a dependant”;
- (ii) after sub-paragraph (c) of subsection (1) there were inserted the following new paragraph:—

“(d) partly by way of an annuity for the benefit of the widow and partly by way of periodical payments for the benefit of such of the children of the deceased employee who shall for the time being be under the age of eighteen years:

Provided that the aggregate of the capital value of such annuity and of such periodical payments shall not exceed the amount aforesaid”.

(2) Subsection (1) of the said section 18 (as amended by the last foregoing subsection), shall apply to a dependant of a former employee of the Corporation who dies within one year after ceasing to be in their employment as it applies to a dependant of an employee who dies whilst in their employment:

Provided that no gratuity shall be granted under this subsection to a dependant of a former employee to whom a gratuity has been granted under subsection (1) of the said section 18.

PART VIII

FINANCE

49.—(1) The Corporation may borrow—

Power to borrow.

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1946 c. 58.

50.—(1) The Corporation may lend to any local authority, upon such terms and conditions as may be agreed, such money as the Corporation think fit to lend and as the local authority are authorised to borrow for the purpose for which such money is proposed to be borrowed:

Power to Corporation to lend money to local authorities, etc.

Provided that the powers of this subsection shall not be exercised unless—

- (a) the local authority borrowing from the Corporation is either—
 - (i) an authority of which the Corporation is a constituent member; or
 - (ii) an authority to which the council appoint a representative; or
 - (iii) a member authority of a consortium of which the Corporation is also a member; or
- (b) the sum lent by the Corporation is part of a larger sum borrowed by the Corporation by way of a stock issue, mortgage loan, bond issue, foreign loan or issue of bills for their own needs and for the needs of another local authority seeking to raise money by the same means.

(2) Any sum borrowed by the Corporation for the purpose of this section shall be repaid within a period to expire not more than one year after that for which the same was lent by them to the local authority.

PART VIII
—*cont.*

(3) Where any sum is borrowed by the Corporation for the purposes of this section it shall be lawful for the Corporation for such periods as they may think fit to suspend any annual provision required to be made by virtue of any enactment for the time being in force for the repayment of the sum borrowed.

(4) The Corporation shall be entitled to charge such rate of interest in respect of any particular loan under this section as may be agreed between the Corporation and the borrower:

Provided that the Corporation shall ensure so far as it is reasonably practicable to do so that having regard to all the circumstances existing at the time the loan is made the rate of interest agreed is such that no loss is incurred by the Corporation in respect of the loan.

1875 c. 83.

(5) In this section “local authority” means the council of a county, county borough or county district and any other authority being a local authority as defined by section 34 of the Local Loans Act 1875, and includes any joint board if all the constituent authorities are such local authorities as aforesaid.

Power to
raise money
abroad.

51.—(1) Any method by which the Corporation are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

(2) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury, and subject to such conditions as the Treasury may impose.

(3) The enactments empowering the Corporation to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there were substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency (adjusted where necessary, to produce an amount which the Corporation consider appropriate having regard to all the circumstances of the transaction).

Power to
raise money
by bearer
bonds.

52. In addition to any other method by which the Corporation may raise any money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise the money by means of the issue of bearer bonds or other securities to bearer.

53. Nothing in the last two foregoing sections shall be taken as exempting the Corporation from the provisions of the Exchange Control Act 1947.

PART VIII
—cont.

Saving for
Exchange
Control Act
1947.

1947 c. 14.

Compensation
for injury to
or death of
officers.

54.—(1) The Corporation may pay compensation—

- (a) to any of their officers who sustains an injury in the course of his employment; or
- (b) to a dependant of any of their officers who, in the course of his employment, dies or sustains an injury resulting in death.

(2) Any compensation payable under this section may be paid either—

- (a) by way of a lump sum; or
- (b) by way of periodical payments of such amounts and payable at such times and for such periods as the Corporation may from time to time determine having regard to all the circumstances of the case.

(3) The payment of compensation under this section shall not affect any right or claim to damages or compensation which an officer of the Corporation or his dependant may have against any person other than the Corporation or, except so far as may be agreed when the compensation is granted, against the Corporation.

PART IX

MISCELLANEOUS

55.—(1) Where any lost or uncollected property is contained in a package, bag or other receptacle, the Corporation may cause such receptacle to be opened and the contents examined, if they deem it necessary to do so, for the purpose either of identifying and tracing the owner of the property or of ascertaining the nature of its contents.

Disposal of
lost and
uncollected
property.

(2) If any lost or uncollected property within three months of coming into the custody of the Corporation be not proved to the reasonable satisfaction of the Corporation to belong to any claimant, it shall thereupon vest in the Corporation:

Provided that any lost or uncollected property which is of a perishable nature and any lost property the custody of which involves unreasonable expense or inconvenience may, notwithstanding that it has not vested in the Corporation under this section, be disposed of at such time and in such manner as the

PART IX
—*cont.*

Corporation may think fit, and, if it is sold, the proceeds of sale shall vest in the Corporation at the expiration of three months from the date on which the property came into their custody.

(3) Where any lost property becomes vested in the Corporation in pursuance of this section, the Corporation may, if they think fit, deliver to the person, whether an employee of the Corporation or not, who placed the lost property in the custody of the Corporation, the whole or any part of such property or of the estimated value thereof in cash.

(4) This section shall, in the case of uncollected property placed in the custody of the Corporation on express terms inconsistent with the rights of the Corporation under this section, have effect subject to those terms.

(5) In this section—

the expression “lost property” means any property coming into the custody of the Corporation, after being left in any park in the borough or on the beach or on or in any premises occupied by the Corporation to which the public have access; and

the expression “uncollected property” means any property deposited in any cloakroom or parcels store provided by the Corporation for the use of the public or any containers deposited in any market store-room provided by the Corporation in which there is exhibited a notice containing a statement to the effect of subsections (1) and (2) of this section.

Microfilming
of documents.

56.—(1) The Corporation may make and retain microfilm recordings of documents of the Corporation.

(2) Notwithstanding anything contained in any enactment, the Corporation may destroy any documents of the Corporation, other than minute books, of which they have made and retained microfilm recordings:

Provided that—

(a) the Corporation shall not under this section destroy records deposited with them under the Public Records Act 1958, or acquired or accepted by them under section 2 of the Local Government (Records) Act 1962; and

(b) the Corporation shall afford a right of access for the public to a microfilm recording of a document which has

1958 c. 51.
1962 c. 56.

been destroyed in pursuance of this section equal to the right of access, if any, of the public to the document so destroyed.

PART IX
—cont.

(3) An enlargement of a microfilm recording of a document made in pursuance of this section shall be deemed for all purposes to be a copy of that document.

(4) Notwithstanding anything contained in any enactment or any rule of law, an enlargement of a microfilm recording of a document which has been destroyed in pursuance of this section shall be receivable in evidence for any purpose for which the document would have been receivable in any proceedings in any court in England or Wales if the town clerk certifies that—

- (a) the document has been destroyed; and
- (b) a microfilm recording of the document has been made; and
- (c) the enlargement is an enlargement of that microfilm recording.

(5) In this section unless the context otherwise requires—

“document” means the whole or part of a register, book, map, plan or other document and includes a notice, licence, certificate, scheme or order made, passed or granted by the council or any committee of the council;

“microfilm recording” means a reproduction of a document on film which is a product of photography or any process akin to photography and is in general beyond legibility with the naked eye.

57.—(1) A committee lawfully authorised by the council to exercise any powers of the council under any enactment may, subject to any direction of the council, appoint such sub-committees consisting either wholly or partly of members of the committee as the committee think fit, and subject as aforesaid may delegate with or without restrictions or conditions any of their functions to a sub-committee so appointed.

Delegation of
powers to
sub-
committees.

(2) A sub-committee appointed under this section (other than a sub-committee of a committee for regulating and controlling the finance of the council or of the borough) may include persons who are not members of the council:

Provided that—

- (a) a majority of the members of any such sub-committee shall be members of the council; and

PART IX
—cont.

(b) whenever at any meeting of any such sub-committee the members present thereat do not include a majority of members of the council, any decision of the sub-committee shall have no effect unless it is confirmed by the committee.

(3) Nothing in this section shall authorise the appointment of a sub-committee for any purpose for which any committee of the council are authorised to appoint a sub-committee under any other enactment.

Delegation to
committees.

58. Subject to subsection (5) of section 85 of the Act of 1933, the power of delegation conferred on the council by that section shall extend to enable the council to delegate functions to a committee, notwithstanding that those functions have been delegated to the council by or by virtue of any enactment.

As to
minutes of
council
meetings, etc.

59.—(1) Notwithstanding anything contained in paragraph 3 of Part V of Schedule 3 to the Act of 1933, or in any other enactment or rule of law to the contrary, the minutes of the proceedings or meetings of the council, or of any committee or sub-committee thereof, may be recorded on loose leaves consecutively numbered, the minutes of the proceedings of any meeting being signed and each leaf comprising those minutes being initialled at the same meeting or the next ensuing meeting of the council, or, as the case may be, at the same or any subsequent meeting of the committee or sub-committee by the person presiding thereat:

Provided that if a meeting of the council is held not later than ten days from the date of a previous meeting of the council, the minutes of that previous meeting may be signed and each leaf comprising those minutes initialled at the next but one ensuing meeting of the council.

(2) Any minutes purporting to be signed as provided by subsection (1) of this section shall be received in evidence without further proof.

Placing
registers on
computers.

60. Where the Corporation are under a statutory obligation to keep a register they shall not be in default of any such obligation by reason of the register being kept by means of a computer.

Power to
require
information
as to
ownership
of premises.

61.—(1) The Corporation may for the purpose of enabling them to perform any of their functions under—

(a) this Act;

(b) any enactment in force at the passing of this Act which authorises the Corporation to acquire land compulsorily;

(c) any enactment mentioned in Schedule 2 to this Act; and

(d) any local enactment in force at the passing of this Act which authorises the Corporation to serve notice upon the owner or occupier of lands or premises requiring the execution by such owner or occupier of works on such lands or premises or which authorises the Corporation to execute works on lands or premises within the borough;

by notice in writing specifying the purpose for which the information is required, require—

(i) the occupier and any person having an interest in any premises in the borough, and any person who either directly or indirectly receives rent in respect of such premises, to state in writing the nature of his own interest therein and the name and address of any other person known to him as having an interest in those premises whether as freeholder, mortgagee, lessee or otherwise, or the name and address of any person known to him to receive either directly or indirectly the rent in respect of those premises; and

(ii) any person who has sold or otherwise disposed of, leased or let any premises in the borough to state in writing the name and address of the person to whom he has sold or otherwise disposed of, leased or let those premises.

(2) Any person who, having been required by the Corporation in pursuance of this section to give to them any information, fails to give that information or knowingly makes any misstatement in respect thereof, shall be liable to a fine not exceeding ten pounds.

(3) For the purposes of this section the expression “interest” includes any legal estate or interest in the premises or in any rentcharge issuing out of those premises.

(4) The provisions of any of the enactments referred to in paragraph (b) of subsection (1) of this section which contain power to require information as to the ownership of premises shall cease to apply to the Corporation in so far as they relate to the same subject-matter as this section.

62.—(1) For the purpose of promoting and fostering the development of the borough the Corporation may incur expenditure in advertising and making known the advantages, facilities and amenities afforded by the borough in any manner and place Power to advertise advantages of borough.

PART IX
—cont.

which the Corporation may think fit and without prejudice to the generality of the foregoing provisions of this section they may for that purpose—

(a) combine with any other organisation, company or person; and

(b) employ such persons, firms or companies as they think fit.

(2) Any expenditure under this section shall be separate from and additional to the expenditure, if any, of the Corporation under the Local Authorities (Publicity) Act 1931.

1931 c. 17.

Electronic or
mechanical
equipment.

63.—(1) The Corporation may, if they think fit, provide services and facilities for any authority, body or person by means of any electronic or mechanical equipment which the Corporation may possess, and the Corporation may make such charges as may be agreed for the provision of those services and facilities.

(2) Information obtained by any employee of the Corporation in the course of the provision of such services or facilities shall not without the consent of the authority, body or person from which it was obtained be disclosed by that employee except for the purpose of performing his duties in relation to those services and facilities or in such cases as may be required by law.

Refreshments
at meetings.

64. The Corporation may make reasonable payments for or in connection with refreshments for members of the council and other persons attending conferences or meetings convened for the purposes or benefit of the council.

Notice of
alteration of
rents without
notice to
quit.

1968 c. 42.

65.—(1) Section 12 of the Prices and Incomes Act 1968 (which enables a local authority to increase the rent payable to the authority for houses let on a weekly or other periodical tenancy whose rents fall to be carried to the authority's housing revenue account without the tenancy being terminated) shall—

(a) apply to all houses within the meaning of the Housing (Financial Provisions) Act 1958 belonging to the Corporation; and

(b) as so applied, extend to a reduction as well as to an increase of rent.

1958 c. 42.

(2) Accordingly the said section 12 shall, as it applies to the Corporation as a local authority within the meaning of that section, have effect as if in subsection (1)—

(a) the words “on a weekly or other periodical tenancy” were omitted;

(b) after the word “ increased ” there were inserted the words “ or reduced ”; and

(c) after the word “ increase ” there were inserted the words “ or reduction ”;

and as if in subsection (4) for the definition of “ local authority houses ” there were substituted the words “ ‘ local authority houses ’ are houses belonging to the local authority ” and after the word “ increase ” there were inserted the words “ or reduction ”.

66.—(1) At any time after a period of six years from the date of the receipt by the Corporation of an application made to the Corporation for a decision, determination, grant, consent, agreement, approval or permission, the Corporation may destroy any documents received by them in connection with the application: Destruction of documents connected with applications.

Provided that nothing in this section shall authorise the Corporation to destroy the application and a copy of any plan or plans approved by them in connection therewith, together with any related certificate, consent, permit or other document issued pursuant to any enactment.

(2) In this section unless the context otherwise requires “ document ” means the whole or part of a register, book, map, plan or other document and includes a notice, licence, certificate, scheme or order made, passed or granted by the council or any committee of the council.

67. For the avoidance of doubt it is hereby declared that the Corporation or their duly authorised officer may on being requested to do so produce, for inspection by any person who satisfies them or their duly authorised officer that he has a genuine interest therein, any plans or drawings which have been lodged or deposited with them in connection with any application made to the Corporation pursuant to any enactment for a decision, determination, grant, consent, agreement, approval or permission. Inspection of plans relating to applications.

PART X

GENERAL

68. As respects byelaws made under this Act, the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Secretary of State. Confirming authority for byelaws.

69.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act. Local inquiries.

PART X
—*cont.*

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry; and for that purpose the definition of “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act.

The appointed day.

70.—(1) In this Act “the appointed day” means such day as may be fixed by resolution of the Council subject to and in accordance with the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

- (a) of the passing of any such resolution and of the day fixed thereby; and
- (b) of the general effect of the provisions of this Act coming into operation as from that day;

and the day so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) Either—

- (a) a copy of any such newspaper containing any such notice; or
- (b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(5) Where any provision of this Act coming into operation on a day fixed by resolution under this section requires the licensing or registration of a person carrying on any business, or of premises used for any purpose, it shall be lawful for any person who—

- (a) immediately before that day was carrying on that business, or using any premises for that purpose; and
- (b) had before that day duly applied for the licence or registration required by that provision;

to continue to carry on that business, or to use those premises for that purpose, until he is informed of the decision with regard to his application, and, if the decision is adverse, during such further time as is provided under section 74 (Appeals) of this Act.

71.—(1) In proceedings under any enactment, a document purporting to be certified by the town clerk as a copy of a resolution passed, order made or report received by the council or a committee thereof on a specified date shall be evidence that that resolution, order or report was duly passed, made or received by the council or committee on that date.

PART X
—cont.

Evidence of
proceedings,
appointments,
etc.

(2) In proceedings under any enactment, a document purporting to be certified as aforesaid as a copy of the appointment of, or of an authority given to, an officer of the council or a committee thereof on a specified date shall be evidence that that appointment was duly made, or that that authority was duly given, by the council or committee on that date.

(3) In this section “officer” includes a servant and an agent.

(4) Section 286 of the Act of 1936, and that section as applied by, or incorporated in, any other enactment, shall cease to apply to the council and its committees.

72.—(1) Where an offence under—

section 15 (Coffee bars, clubs, etc., open after 11 p.m. or before 5 a.m.);

section 28 (Misleading signs on motor vehicles);

section 29 (Transfer of hackney carriages, etc.);

Liability of
directors, etc.

of this Act committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate, or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and be liable to be proceeded against and punished accordingly.

(2) In the foregoing subsection, “director” in relation to any body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by its members, means a member of that body.

73.—The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or by the Corporation.

Restriction on
right to
prosecute.

74.—(1) Section 300 of the Act of 1936 shall apply to appeals to a magistrates’ court under this Act; and sections 301 and 302 of that Act shall apply accordingly.

Appeals.

PART X
—cont.

(2) Where any requirement, refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on a business which he was lawfully carrying on up to the time of the requirement, refusal or decision, or to use premises for any purpose for which they were lawfully used up to that time;

then, until the time for appealing has expired or, if an appeal is lodged, until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work, or take the action, nor shall the Corporation themselves execute the work or take the action; and
- (ii) that person may carry on that business, and use those premises for that purpose.

Protection of
members and
officers of
Corporation
from personal
liability.
1875 c. 55.

75. Section 265 of the Public Health Act 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee or a sub-committee of a local authority.

Application
of general
provisions of
Act of 1936.

76.—(1) The sections of the Act of 1936 mentioned in Part I of Schedule 3 to this Act shall have effect as if references therein to that Act included a reference to this Act.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included a reference to sections 14 (Securing of unoccupied houses under Act of 1957) and 22 (Maintenance of and access to bulk refuse containers) of this Act.

(3) The section of the Act of 1936 mentioned in Part III of the said schedule shall have effect as if references therein to that Act included a reference to section 14 (Securing of unoccupied houses under Act of 1957) of this Act.

Costs of
Act.

77. All the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation.

SCHEDULES

SCHEDULE 1

Section 43.

TRUSTS APPLICABLE TO DESIGNATED SUMS

The trustees shall stand possessed of the designated sum to which a contributor has directed that section 43 (Power to require designated sums to be paid to trustees) of this Act shall apply and the income thereof upon the following trusts, and with and subject to the following powers and provisions, that is to say:—

1. During the period of twenty-one years from the death of the former contributor, the trustees may pay or apply the designated sum and the income thereof, or any part thereof, respectively to, or for the benefit of, all or any one or more exclusively of the other or others of the following persons:—

- (a) the widow or widower of such former contributor;
- (b) the grandparents of such former contributor and the grandparents of the widow or widower of such former contributor and the grandparents of any previous or deceased wife or husband of such former contributor;
- (c) the issue of such former contributor;
- (d) any other issue of any of the grandparents referred to in sub-paragraph (b) of this paragraph; and
- (e) the person or persons (if any, and whether of full age or not) to whom such former contributor has at any time put himself in loco parentis or of whose person or property such former contributor has at any time been guardian;

in such shares and in such manner as the trustees shall in their absolute discretion from time to time determine, and so that the trustees may, if they think fit, pay any sum to the parent or guardian of any infant to be applied for the benefit of such infant without seeing to the application thereof.

2. In addition to the powers conferred on them by virtue of paragraph 1 of this schedule during the said period of twenty-one years, the trustees may at any time pay or apply the designated sum and the income thereof, or any part thereof respectively to, or for the benefit of, any person who in the opinion of the trustees was wholly or in part dependent on the earnings of such former contributor at his death, in such manner as the trustees shall in their absolute discretion think fit.

3. Subject as aforesaid, the designated sum and the income thereof, or so much thereof respectively as shall not have been paid or applied under the powers conferred by the foregoing provisions of this schedule, shall be paid to such person or persons (other than the Crown, the Duchy of Lancaster or the Duke of Cornwall) as would at the death of such former contributor have

SCH. 1
—cont.
1925 c. 23.
952 c. 64.

become entitled thereto under the Administration of Estates Act 1925, as amended by the Intestates' Estates Act 1952, or any statutory modification or re-enactment thereof in force at the death of such former contributor if such former contributor had died possessed thereof intestate and domiciled in England and solvent, and so that such persons, if more than one, shall take in such shares and manner in which they would have taken under the provisions of the said Act or Acts, and subject to the conditions therein contained.

4. In this schedule "grandparents" and "issue" shall be construed as if the step-child, adopted child or illegitimate child of any person was that person's child, and "issue" includes issue in any degree.

Section 61.

SCHEDULE 2

ENACTMENTS MENTIONED IN SECTION 61

- 1875 c. 55. Public Health Act 1875.
- 1890 c. 59. Public Health Acts Amendment Act 1890.
- 1907 c. 53. Public Health Acts Amendment Act 1907.
- 1925 c. 71. Public Health Act 1925.
- 1930 c. 44. Land Drainage Act 1930.
- The Act of 1936.
- 1957 c. 56. Housing Act 1957.
- 1959 c. 25. Highways Act 1959.
- 1960 c. 62. Caravan Sites and Control of Development Act 1960.
- 1961 c. 63. Highways (Miscellaneous Provisions) Act 1961.
- 1961 c. 48. Land Drainage Act 1961.
- 1961 c. 64. Public Health Act 1961.
- 1967 c. 9. General Rate Act 1967.

Section 76.

SCHEDULE 3

SECTIONS OF ACT OF 1936 APPLIED

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288	Penalty for obstructing execution of Act.
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PART II

SCH. 3
—cont.

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276	Power of local authorities to sell certain materials.
289	Power to require occupier to permit works to be executed by owner.
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292	Power to make a charge in respect of establishment expenses.
293	Recovery of expenses &c.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint &c.
329	Saving for certain provisions of the Land Charges Act 1925. 1925 c. 22.

PART III

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